



2025:KER:585

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE N.NAGARESH

TUESDAY, THE 7TH DAY OF JANUARY 2025 / 17TH POUSHA, 1946

WP(C) NO. 220 OF 2025

PETITIONER:

ARAVIND P
AGED 33 YEARS
SON OF T.M. PURUSHOTHAMAN NAIR,
UPPER PRIMARY SCHOOL TEACHER,
S M V HIGHER SECONDARY SCHOOL, POONJAR,
KOTTAYAM DISTRICT, PIN - 686581.

BY ADVS.
V.A.MUHAMMED
PRESAD V.G.

RESPONDENTS:

- 1 THE STATE OF KERALA
REPRESENTED BY ITS PRINCIPAL SECRETARY TO
GOVERNMENT, GENERAL EDUCATION DEPARTMENT,
SECRETARIAT, THIRUVANANTHAPURAM, PIN - 695001.
- 2 THE DIRECTOR OF GENERAL EDUCATION
OFFICE OF THE DIRECTOR OF GENERAL EDUCATION,
JAGATHY, THIRUVANANTHAPURAM, PIN - 695014.



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- 3 THE DEPUTY DIRECTOR OF EDUCATION
OFFICE OF THE DEPUTY DIRECTOR OF EDUCATION,
VAYASKARAKUNNU, PULIMOODU JUNCTION,
KOTTAYAM, PIN - 686001.
- 4 THE DISTRICT EDUCATIONAL OFFICER
OFFICE OF THE DISTRICT EDUCATIONAL OFFICER,
KANJIRAPPALLY, KOTTAYAM, PIN - 686507.
- 5 THE MANAGER
S M V HIGHER SECONDARY SCHOOL, POONJAR,
KOTTAYAM DISTRICT, PIN - 686581.
- 6 THE PRINCIPAL
S M V HIGHER SECONDARY SCHOOL, POONJAR,
KOTTAYAM DISTRICT, PIN - 686581.
- 7 THE HEADMASTER/VICE PRINCIPAL
S M V HIGHER SECONDARY SCHOOL, POONJAR,
KOTTAYAM DISTRICT, PIN - 686581.
- 8 SMT. K.J. GAYATHRI DEVI
HIGH SCHOOL TEACHER (NATURAL SCIENCE),
S M V HIGHER SECONDARY SCHOOL, POONJAR,
KOTTAYAM DISTRICT, PIN - 686581.
- 9 SMT. G. YAMUNA
HIGH SCHOOL TEACHER (NATURAL SCIENCE),
S M V HIGHER SECONDARY SCHOOL, POONJAR,
KOTTAYAM DISTRICT, PIN - 686581.

BY ADV.SRI.VENUGOPAL V., SR.GOVERNMENT PLEADER.

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR
ADMISSION ON 07.01.2025, THE COURT ON THE SAME DAY
DELIVERED THE FOLLOWING:



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J U D G M E N T

Dated this the 7th day of January, 2025

The petitioner was appointed as UPST from 01.08.2019 against the promotion vacancy of the 8th respondent as HST (Natural Science). The appointment was approved on daily wage basis up to 31.03.2020. Later, the petitioner was appointed as UPST from 15.07.2021 against the same promotion vacancy of the 8th respondent. It was also approved from 21.10.2021, the date of passing KTET onwards.

2. The 8th respondent was initially promoted as HST (Natural Science) from 01.11.2013 against the LWA vacancy of the 9th respondent who availed LWA from 31.10.2013 to 30.10.2018. It was approved up to 31.05.2018. The 9th respondent extended the LWA for a further period from



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01.11.2018 to 31.05.2023. The 8th respondent was again promoted in the vacancy from 01.06.2018 to 31.05.2023. Its approval was granted up to 31.05.2020 since the 9th respondent rejoined duty on 01.06.2020 cancelling the unavailed portion of leave.

3. As a result, the 8th respondent was reverted as UPST from 01.06.2020. This reversion and lien adjustment was made during the period of Covid-19 pandemic. At that time, Schools were not opened. Hence, both the 8th respondent and the petitioner were continued in the HSA and UPSA posts discharging the duties.

4. On 01.06.2020, there arose a vacancy of HSA (Natural Science) due to the retirement of Smt.S.Jalaja on 31.5.2020. Hence, either the 8th respondent or the 9th respondent could be adjusted against the retirement vacancy of HSA (Natural Science) since 01.06.2020 without causing



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recorded retrenchment of the petitioner from the category of UPST as on 01.06.2020.

5. Besides, the permission granted to the 9th respondent to rejoin duty after cancelling the unavailed portion of LWA by 01.06.2020 when the Schools were closed due to Covid Lockdown was per se illegal. All these issues are raised before the Government. The 8th respondent also filed Revision Petition. Both of the revisions are pending. Undue delay in its consideration would cause undue hardship to the petitioner, contend the Counsel for the petitioner.

6. Against the non-grant of approval to the appointment of the petitioner from 01.08.2019 onwards on scale of pay basis, the petitioner has filed Ext.P10 Revision Petition. It is evident from the pleadings that against his reversion, the 8th respondent also has filed Revision Petition as per Ext.P11.



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7. Considering the facts of the case, I find that it would be only appropriate that the 1st respondent considers Ext.P10 Revision Petition filed by the petitioner expeditiously.

Accordingly, the writ petition is disposed of directing the 1st respondent to consider Ext.P10 Revision Petition and take appropriate decision thereon within a period of four months, after giving opportunity of hearing to the petitioner and other affected parties. If the 1st respondent finds that Ext.P11 Revision Petition is also to be considered along with Ext.P10 Revision Petition, the 1st respondent will be at liberty to do so.

Sd/-

**N.NAGARESH
JUDGE**

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APPENDIX OF WP(C) 220/2025

PETITIONER'S EXHIBITS

Exhibit P-1	TRUE COPY OF THE APPOINTMENT ORDER DATED 01.11.2023
Exhibit P-2	TRUE COPY OF THE ORDER NO. B4/107968/2020 DATED 18.07.2022 OF THE 4TH RESPONDENT
Exhibit P-3	TRUE COPY OF THE ORDER NO. B4/132905/2023 DATED 26.06.2023 OF THE 4TH RESPONDENT (IN-CHARGE)
Exhibit P-4	TRUE COPY OF THE APPOINTMENT ORDER DATED 01.08.2019
Exhibit P-5	TRUE COPY OF THE ORDER NO. ET3/232217/2020 DATED 28.06.2022 OF THE ADDITIONAL DIRECTOR (GENERAL) ATTACHED TO THE OFFICE OF THE 2ND RESPONDENT
Exhibit P-6	TRUE COPY OF THE ORDER NO. B4/110177/2020 DATED 07.11.2022 ISSUED BY THE 4TH RESPONDENT
Exhibit P-7	TRUE COPY OF THE ORDER NO. B4/723315/2024 DATED 30.05.2024 OF THE 4TH RESPONDENT
Exhibit P-8	TRUE COPY OF THE ORDER NO. B4/583/23 DATED 19.04.2023 OF THE DEO, KANJIRAPPALY
Exhibit P-9	TRUE COPY OF THE LETTER ADDRESSED THE MANAGER TO REGULARIZE THE LIEN OF SMT. GAYATHI DEVI FROM 01.06.2020 TO



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14.07.2021 NOTIONALLY IN ORDER TO
REGULARIZE HIS LIEN PERIOD OF SERVICE
FROM 01.08.2019 TO 31.05.2020 AND FROM
1.6.2020 ONWARDS VIDE LETTER DATED
12.09.2024

Exhibit P-10

TRUE COPY OF THE REVISION PETITION
DATED 10.10.2024 SUBMITTED BEFORE THE
1ST RESPONDENT

Exhibit P-11

TRUE COPY OF THE REVISION PETITION
DATED 07.10.2024 FILED BY THE 8TH
RESPONDENT